

1 - PART 1 - COVER SHEET AND SCHEDULE.....	2
ACKNOWLEDGMENT OF AMENDMENTS	2
REMITTANCE ADDRESS	2
INVOICE STATEMENT	2
PRIVACY ACT STATEMENT	2
PROVISIONS INCORPORATED BY REFERENCE	3
PROVISIONS BY FULL TEXT	3
PROVISION 1-1 SUPPLIER CLEARANCE REQUIREMENTS (SEPTEMBER 2021).....	3
PROVISION 1-4 PROHIBITION AGAINST CONTRACTING WITH FORMER POSTAL SERVICE OFFICERS OR PCES EXECUTIVES (MARCH 2006)	3
PROVISION 1-5 PROPOSED USE OF FORMER POSTAL SERVICE EMPLOYEES (MARCH 2006).....	3
PROVISION 4-1 STANDARD SOLICITATION PROVISIONS (JUNE 2020)	4
PROVISION 4-2 EVALUATION (FEBRUARY 2025).....	5
PROVISION 4-3: REPRESENTATIONS AND CERTIFICATIONS (FEBRUARY 2025)	11
3 - PART 3 - CONTRACT CLAUSES	15
CLAUSES BY FULL TEXT	15
CLAUSE B-9 CLAIMS AND DISPUTES (AUGUST 2023)	15
CLAUSE B-26: PROTECTION OF POSTAL SERVICE BUILDINGS, EQUIPMENT, AND VEGETATION (MARCH 2026).....	16
CLAUSE B-39 INDEMNIFICATION (MARCH 2006)	18
CLAUSE 1-1 PRIVACY PROTECTION (OCTOBER 2014).....	18
CLAUSE 1-7 ORGANIZATIONAL CONFLICTS OF INTEREST (MARCH 2006)	19
CLAUSE 1-11 PROHIBITION AGAINST CONTRACTING WITH FORMER OFFICERS OR PCES EXECUTIVES (MARCH 2006).....	20
CLAUSE 1-12 USE OF FORMER POSTAL SERVICE EMPLOYEES (MARCH 2006)	20
CLAUSE 2-19: OPTION TO EXTEND (SHORT TERM) (OCTOBER 2019)	21
CLAUSE 2-20: OPTION PERIOD (SEPTEMBER 2021).....	21
CLAUSE 2-39 ORDERING (FEBRUARY 2018).....	21
CLAUSE 4-1 GENERAL TERMS AND CONDITIONS (APRIL 2025)	21
CLAUSE 4-2 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT POLICIES, STATUTES OR EXECUTIVE ORDERS (JUNE 2025)	28
CLAUSE 4-4 NONDISCLOSURE (PROFESSIONAL SERVICES) (MARCH 2006)	31
CLAUSE 4-5 INSPECTION OF PROFESSIONAL SERVICES (MARCH 2006)	31
CLAUSE 4-7 RECORDS OWNERSHIP (MARCH 2006)	31
CLAUSE 4-19 INFORMATION SECURITY REQUIREMENTS (APRIL 2023).....	32
CLAUSE 6-1 CONTRACTING OFFICER'S REPRESENTATIVE (MARCH 2006).....	32
CLAUSE 8-10 RIGHTS IN DATA - SPECIAL WORKS (MARCH 2006).....	32
CLAUSE 8-13: INTELLECTUAL PROPERTY RIGHTS (MARCH 2006).....	33

1 - PART 1 - COVER SHEET AND SCHEDULE

ACKNOWLEDGMENT OF AMENDMENTS

The offeror acknowledges receipt of amendments to the solicitation numbered and dated as follows:

Amendment Number	Date	Amendment Number	Date
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____
_____	_____	_____	_____

REMITTANCE ADDRESS

Remittance Address (if different from Block 16, PS Form 8203)

INVOICE STATEMENT

All invoices MUST reference the Award Number and corresponding line item number listed on this purchase document. Invoices not in compliance may result in delayed payment.

Invoices that do not include the Supplier's Name as stated on the original award document or latest modification will be returned.

All payments for this award and related orders will be transmitted or sent to the Remittance Address on the Award document or latest modification, regardless of any Remittance Address on the invoice. The Supplier must notify the Contracting Officer of any change to the Supplier name and/or Remittance Address.

PRIVACY ACT STATEMENT

Privacy Act Statement: Your information will be used to determine your qualifications for a USPS

EEO contract investigator. Collection is authorized by 39 U.S.C. 401, 409, 410, 1001, 1005, and 1206. Providing the information is voluntary, but if not provided, we may not be able to process your response to this solicitation. We may disclose your information as follows: in relevant legal proceedings; to law enforcement when the U.S. Postal Service (USPS) or requesting agency becomes aware of a violation of law; to a congressional office at your request; to entities or individuals under contract with USPS; to entities authorized to perform audits; to labor organizations as required by law; to federal, state, local or foreign government agencies regarding personnel matters; to the Equal Employment Opportunity Commission; and to the Merit Systems Protection Board or Office of Special Counsel. For more information regarding our privacy policies visit www.usps.com/privacypolicy2 - PART 2 - PROVISIONS

PROVISIONS INCORPORATED BY REFERENCE

The above provisions are incorporated by reference as if set forth in full text. The offeror is cautioned that the listed provisions may include blocks that must be completed by the offeror and submitted with its quotation or offer. In lieu of submitting the full text of those provisions, the offeror may identify the provision by paragraph identifier and provide the appropriate information with its quotation or offer. The text of these provisions may be accessed electronically at this address: <http://about.usps.com/manuals/spp/spp.pdf> or, upon request, will be provided by the contracting officer.

PROVISIONS BY FULL TEXT

PROVISION 1-1 SUPPLIER CLEARANCE REQUIREMENTS (SEPTEMBER 2021)

The contract resulting from this solicitation will require the contractor or its employees (including subcontractors and their employees) to have access to occupied postal facilities, and/or to postal information and resources, including postal computer systems. Clearance in accordance with Administrative Support Manual 272.4 will be required before that access will be permitted. It is the contractor's obligation to obtain and supply to the Postal Service the forms and information required by that regulation.

Offerors must familiarize themselves with the requirements of that section, taking into account in their offers the time and paperwork associated with the screening

PROVISION 1-4 PROHIBITION AGAINST CONTRACTING WITH FORMER POSTAL SERVICE OFFICERS OR PCES EXECUTIVES (MARCH 2006)

The offeror represents that former Postal Service officers or Postal Career Executive Service (PCES) executives will not be employed as key personnel, experts or consultants in the performance of the contract if such individuals, within 1 year of their retirement from the Postal Service, will be performing substantially the same duties as they performed during their career with the Postal Service. In addition, no contract resulting from this solicitation may be awarded to such individuals or entities in which they have a substantial interest, for 1 year after their retirement from the Postal Service, if the work called for in the solicitation requires such individuals to perform substantially the same duties as they performed during their career with the Postal Service.

PROVISION 1-5 PROPOSED USE OF FORMER POSTAL SERVICE EMPLOYEES (MARCH 2006)

In its proposal, the supplier must identify any former Postal Service employee it proposes to engage in the performance, directly or indirectly, in the performance of the contract. The Postal Service reserves the right to require the supplier to replace the proposed individual with an equally qualified individual.

PROVISION 4-1 STANDARD SOLICITATION PROVISIONS (JUNE 2020)

- a. *Submission of Offers.* Submit signed and dated offers to the office specified in this solicitation at or before the exact time specified on this solicitation. Offers may be submitted on PS Form 8203, *Order/Solicitation/Offer/Award*, letterhead stationery, or as otherwise specified in the solicitation. As a minimum offers must show:
1. Solicitation Number;
 2. The name, address and telephone number of the offeror;
 3. A technical description of the items being offered in sufficient detail to evaluate compliance with the requirements in the solicitation. This may include product literature, or other documents, if necessary;
 4. Terms of any expressed warranty;
 5. Price and any discount terms;
 6. "Remit to" address, if different than mailing address;
 7. A completed copy of the representations and certifications;
 8. Acknowledgment of Solicitation Amendments;
 9. Past performance information, when included as an evaluation factor, to include recent and relevant contracts for the same or similar items, and other references (including contract numbers, point of contact, with telephone numbers, and other relevant information); and
 10. If the offer is not submitted on PS Form 8203, include a statement specifying the extent of agreement with all terms and conditions and provisions included in the solicitation. Offers that fail to furnish required representations or information, or reject the terms and conditions of the solicitation, may be excluded from consideration.
- b. *Business Disagreements.* Business Disagreements. Business disagreements may be lodged with the Supplier Disagreement Resolution (SDR) Official if the supplier and the contracting officer have failed to resolve the disagreement as described in 39 CFR Section 601). The SDR Official will consider the disagreement only if it is lodged in accordance with the time limits and procedures described in 39 CFR Section 601. The SDR Official's decisions are available for review at www.usps.com.
- c. *Product Samples.* When required by the solicitation, product samples must be submitted at or prior to the time specified for receipt of offers. Unless otherwise specified in the solicitation, these samples must be submitted at no expense to the Postal Service and returned at the sender's request and expense, unless they are destroyed during preaward testing.
- d. *Multiple Offers.* Offerors are encouraged to submit multiple offers presenting alternative terms and conditions or commercial items for satisfying the requirements of this solicitation. Each offer submitted will be evaluated separately.
- e. *Late Offers.* Offers or modifications of offers received at the address specified for the receipt of offers after the exact time specified for receipt of offers will not be considered unless determined to be in the best interests of the Postal Service.
- f. *Type of Contract.* The Postal Service plans to award an Ordering Agreement (OAG) and all proposals must be submitted on this basis. Alternate proposals based on other contract types will ___ will not X be considered.
- g. *Contract Award.* The Postal Service may evaluate offers and award a contract without discussions with offerors. Therefore, the offeror's initial offer should contain the offeror's best terms from a price and technical standpoint. Discussions may be conducted if the Postal Service determines they are necessary. The Postal Service may reject any or all offers if such action is in the best interest of the Postal Service; accept other than the lowest offer, and waive informalities and minor irregularities in offers received.
- h. *Multiple Awards.* The Postal Service may accept any item or group of items of an offer, unless the offeror qualifies the offer by specific limitations. Unless otherwise provided in the Schedule, offers may not be submitted for quantities less than those specified. The Postal Service reserves the right to make an award on any items for quantity less than the

quantities offered, at the unit prices offered, unless the offeror specifies otherwise in the offer.

- i. ***Incorporation by Reference.*** Wherever in this solicitation or contract a standard provision or clause is incorporated by reference, the incorporated term is identified by its title, the provision or clause number assigned to it, and its date. The text of incorporated terms may be found at: <http://about.usps.com/manuals/pm/welcome.htm>.

If checked, the following provision is incorporated in this solicitation by reference:
(*contracting officer will check as appropriate.*)

- j. Provision 9-5: Compliance with Veterans' Employment Reporting Requirements

PROVISION 4-2 EVALUATION (FEBRUARY 2025)

Name: _____

Email Address: _____

PROVISION 4-2: EVALUATION (FEBRUARY 2025)

a. General. The Postal Service will award a contract resulting from this solicitation to the offerors whose offers conforming to the solicitation are deemed best suited to provide the Postal Service with the best quality, timeliness and other factors, as specified.

NOTE: THIS SOLICITATION IS FOR INDIVIDUALS ONLY. SUBMISSIONS FROM COMPANIES OR CORPORATIONS WITH EMPLOYEES DESIGNATED TO PERFORM THIS TYPE OF WORK WILL NOT BE CONSIDERED. SELECTED OFFERORS MUST PERFORM ALL THE WORK ASSOCIATED WITH THE ASSIGNED TASK ORDER.

Definitions:

Virtual Mediation Platforms are digital tools that facilitate the resolution of disputes through mediation. They offer a remote process that allows parties to engage in mediation without the need for in-person meetings. These platforms are essential in the digital age, providing a convenient and accessible alternative to traditional mediation methods. Examples of these Virtual Mediation Platforms are Zoom Professional or Microsoft TEAMS.

Digital Signature Platforms are systems that utilize cryptographic methods to verify the authenticity and integrity of digital documents or messages. They serve as a secure method for signing documents, ensuring that the content has not been altered and that the sender's identity is verified. Docusign.com is an example of a Digital Signature Platform.

Facilitative mediation is a conflict resolution process where a neutral third-party mediator assists disputing parties in communicating and negotiating to reach their own mutually acceptable agreement. The mediator does not impose solutions or make decisions but instead fosters an environment that encourages open dialogue and understanding.

Transformative mediation is a conflict resolution approach that focuses on empowering parties to take control of their disputes and work towards mutually beneficial solutions. It emphasizes the transformation of the parties' relationships and their understanding of the conflict, rather than solely resolving immediate disputes.

A. Technical & Supplier Capability

Offeror capability is evaluated to determine an offeror's ability to perform upon award of a contract. This information will be used to assess the quality, experience, and resources of the offeror to perform. The USPS will evaluate the offeror's demonstrated understanding of the various functional and technical requirements of the statement of work. The USPS will evaluate the degree to which the offeror's approach will meet the requirements to provide, on an on-going basis, the services as detailed in the USPS statement of work.

The following **Performance Evaluation Factors** will be used in the evaluation of offers. Please read and answer all questions thoroughly.

1. The USPS does not award contracts to **current** USPS and other Federal employees. Are you a current USPS or other Federal employee?

- ☐ Yes, I am currently employed
- ☐ Yes, I am currently employed, but retirement will be effective within 30 days of this solicitation close date
- ☐ No, not currently employed with the USPS or other Federal Agency

2. Please select your education level:

- ☐ Master's Degree or higher
 - Type of Degree: _____
 - Educational Institution: _____
 - Date Awarded: _____
- ☐ Bachelor's Degree
 - Type of Degree: _____
 - Educational Institution: _____
 - Date Awarded: _____
- ☐ Associate Degree
 - Type of Degree: _____
 - Educational Institution: _____
 - Date Awarded: _____
- ☐ Certification Program
 - Type of Certification: _____
 - Education Institution: _____
 - Date Awarded: _____
- ☐ Currently enrolled in a College or Certification Program
 - Type of Degree or Certification: _____
 - Education Institution: _____
 - Expected Graduation Date: _____
- ☐ No College or Certification

3. Required Equipment – Offeror must provide the following upon being offered a contract:

- Own private workspace.

- Computer with Windows 10 Pro or macOS Big Sur or higher operating system with at least RAM 8 GB and Storage 256GB SSD or larger, with minimum processor Intel Core i5 or equivalent.
- Microsoft Office 2010 or higher software
- Adobe PRO Software
- Document Scanner (Physical/Virtual)
- Internet Connectivity: reliable internet access with a minimum bandwidth of 25 Mbps download/10 Mbps upload and email account.
- Contractor Direct Telephone number
- Security Software: install and maintain up-to-date antivirus and anti-malware software on all equipment used for this contract Anti-Virus Protection for computer system
- Secure Digital Signature Platform such as DocuSign.com
- Secure Virtual Meeting Platform such as Zoom Professional or Microsoft TEAMS

☐ By checking this box, you acknowledge that you have read the above required equipment list and agree that you will have all required equipment upon being offered a contract.

4. Offerors must have excellent computer skills.

Please select your level of experience using **Virtual Mediation Platforms**:

- ☐ I have no experience in using Virtual Mediation Platforms, but I am willing to learn.
- ☐ I have limited experience in using Virtual Mediation Platforms. I have had exposure to Virtual Mediation Platforms, but would require additional guidance, instruction, or experience to perform it at a proficient level.
- ☐ I have experience in using Virtual Mediation Platforms including monitoring the Chat feature, creating and assigning participants to breakrooms, etc., across routine or predictable situations, with minimal supervision or guidance.
- ☐ I have experience in using Virtual Mediation Platforms independently across a wide range of situations. I have assisted others in using Virtual Mediation Platforms. I seek guidance in using Virtual Mediation Platforms only in unusually complex situations.
- ☐ I am considered an expert in using Virtual Mediation Platforms. I advise and instruct others in using Virtual Mediation Platforms on a regular basis. I am consulted by my colleagues and/or supervisors about using Virtual Mediation Platforms in unusually complex situations.

Please select your level of experience with **Microsoft Word**:

- ☐ I have no experience in using Microsoft Word, but I am willing to learn.
- ☐ I have limited experience in using Microsoft Word. I have had exposure to Microsoft Word, but would require additional guidance, instruction, or experience to perform it at a proficient level.
- ☐ I have experience in using Microsoft Word across routine or predictable situations with minimal supervision or guidance.
- ☐ I have experience in using Microsoft Word independently across a wide range of situations. I have assisted others in using Microsoft Word. I seek guidance in using Microsoft Word only in unusually complex situations.

- ☐ I am considered an expert in using Microsoft Word. I advise and instruct others in using Word on a regular basis. I am consulted by my colleagues and/or supervisors in using Microsoft Word in unusually complex situations.

Please select your level of experience with **Adobe Acrobat Professional**:

- ☐ I have no experience in using Adobe Acrobat Professional, but I am willing to learn.
- ☐ I have limited experience in using Adobe Acrobat Professional. I have had exposure to Adobe Acrobat Professional, but would require additional guidance, instruction, or experience to perform it at a proficient level.
- ☐ I have experience in using Adobe Acrobat Professional across routine or predictable situations with minimal supervision or guidance. I know how to insert and extract pages, bookmark, paginate and redact in Adobe Acrobat Professional.
- ☐ I have experience in using Adobe Acrobat Professional independently across a wide range of situations. I have assisted others in using Adobe Acrobat Professional. I seek guidance only in unusually complex situations.
- ☐ I am considered an expert in using Adobe Acrobat Professional. I advise and instruct others in using Adobe Acrobat Professional on a regular basis. I am consulted by my colleagues and/or supervisors in using Adobe Acrobat Professional in unusually complex situations.

Please select your level of experience with **Digital Signature Platforms**

- ☐ I have no experience in using Digital Signature Platforms, but I am willing to learn.
- ☐ I have limited experience in using Digital Signature Platforms. I have had exposure to Digital Signature Platforms, but would require additional guidance, instruction, or experience to perform it at a proficient level.
- ☐ I have experience in using Digital Signature Platforms across routine or predictable situations with minimal supervision or guidance. I know how to create, sign, and forward documents in Digital Signature Platforms.
- ☐ I have experience in using Digital Signature Platforms independently across a wide range of situations. I have assisted others in using Digital Signature Platforms. I seek guidance only in unusually complex situations.
- ☐ I am considered an expert in using Digital Signature Platforms. I advise and instruct others in using Digital Signature Platforms on a regular basis. I am consulted by my colleagues and/or supervisors in using Digital Signature Platforms in unusually complex situations.

5. Offerors must have knowledge of statutes, regulations, current case law and administrative procedures as they relate to federal sector EEO complaints.

- ☐ I have no knowledge of statutes, regulations, current case law and administrative procedures as they relate to federal sector EEO complaints, but I am willing to learn.
- ☐ I have limited knowledge of statutes, regulations, current case law and administrative procedures as they relate to federal sector EEO complaints

- ☐ I have a very good understanding of statutes, regulations, current case law and administrative procedures as they relate to federal sector EEO complaints and have utilized this knowledge regularly
- ☐ I am considered an expert in statutes, regulations, current case law and administrative procedures as they relate to federal sector EEO complaints

6. Offerors must have excellent organizational, and administrative skills, must be able to meet provided timelines.

- ☐ I have no experience in performing this work behavior, but I am willing to learn.
- ☐ I have limited experience in performing this work behavior. I have had exposure to this work behavior but would require additional guidance, instruction, or experience to perform it at a proficient level.
- ☐ I have experience performing this work behavior across routine or predictable situations with minimal supervision or guidance.
- ☐ I have regularly performed this work behavior independently across a wide range of situations. I have assisted others in carrying out this work behavior. I seek guidance in carrying out this work behavior only in unusually complex situations.
- ☐ I am considered an expert in carrying out this work behavior. I advise and instruct others in carrying out this work behavior on a regular basis. I am consulted by my colleagues and/or supervisors to carry out this work behavior in unusually complex situations.

7. Offerors have the ability to conduct mediations using the Transformative Model.

- ☐ I have no experience in performing this work behavior, but I am willing to learn.
- ☐ I have limited experience in performing this work behavior. I have had exposure to this work behavior but would require additional guidance, instruction, or experience to perform it at a proficient level.
- ☐ I have experience performing this work behavior across routine or predictable situations with minimal supervision or guidance.
- ☐ I have regularly performed this work behavior independently across a wide range of situations. I have assisted others in carrying out this work behavior. I seek guidance in carrying out this work behavior only in unusually complex situations.
- ☐ I am considered an expert in carrying out this work behavior. I advise and instruct others in carrying out this work behavior on a regular basis. I am consulted by my colleagues and/or supervisors to carry out this work behavior in unusually complex situations.

Have you had training in Transformative Mediation? If so, please provide the dates of training(s). Please identify any certification(s) that you may have. (You are encouraged to attached supporting documentation, i.e. certificate(s), transcript(s), etc.).

8. Offerors have the ability to conduct mediations using the Facilitative Model.

- ☐ I have no experience in performing this work behavior, but I am willing to learn.
- ☐ I have limited experience in performing this work behavior. I have had exposure to this work behavior but would require additional guidance, instruction, or experience to perform it at a proficient level.
- ☐ I have experience performing this work behavior across routine or predictable situations with minimal supervision or guidance.
- ☐ I have regularly performed this work behavior independently across a wide range of situations. I have assisted others in carrying out this work behavior. I seek guidance in carrying out this work behavior only in unusually complex situations.
- ☐ I am considered an expert in carrying out this work behavior. I advise and instruct others in carrying out this work behavior on a regular basis. I am consulted by my colleagues and/or supervisors to carry out this work behavior in unusually complex situations.

Have you had training in Facilitative Mediation? If so, please provide the dates of training(s). Please identify any certification(s) that you may have. (You are encouraged to attached supporting documentation, i.e. certificate(s), transcript(s), etc.).

B. Past Performance

9. Describe your experience conducting mediations involving workplace disputes involving allegations of discrimination, harassment, and/or hostile work environment:

- ☐ I have no experience in performing this work behavior, but I am willing to learn.
- ☐ I have limited experience in performing this work behavior. I have had exposure to this work behavior but would require additional guidance, instruction, or experience to perform it at a proficient level.
- ☐ I have experience performing this work behavior across routine or predictable situations with minimal supervision or guidance.
- ☐ I have regularly performed this work behavior independently across a wide range of situations. I have assisted others in carrying out this work behavior. I seek guidance in carrying out this work behavior only in unusually complex situations.
- ☐ I am considered an expert in carrying out this work behavior. I advise and instruct others in carrying out this work behavior on a regular basis. I am consulted by my colleagues and/or supervisors to carry out this work behavior in unusually complex situations.

10. Describe your experience assisting parties with facilitation of solutions to disputes:

- ☐ I have no experience in performing this work behavior, but I am willing to learn.
- ☐ I have limited experience in performing this work behavior. I have had exposure to this work behavior but would require additional guidance, instruction, or experience to perform it at a proficient level.

- ☐ I have experience performing this work behavior across routine or predictable situations with minimal supervision or guidance.
- ☐ I have regularly performed this work behavior independently across a wide range of situations. I have assisted others in carrying out this work behavior. I seek guidance in carrying out this work behavior only in unusually complex situations.
- ☐ I am considered an expert in carrying out this work behavior. I advise and instruct others in carrying out this work behavior on a regular basis. I am consulted by my colleagues and/or supervisors to carry out this work behavior in unusually complex situations.

C. Information

11. How did you hear about this contracting opportunity?

- ☐ Friend/Family/Acquaintance
- ☐ Flyer
- ☐ email Notification
- ☐ INDEED.COM
- ☐ SAM.GOV
- ☐ Other: _____

D. EEO Mediator Skills Class

The final step is the USPS EEO Mediator Skills Class. It is customary to award a contract if the offeror successfully completes the USPS EEO Mediator Skills class. Currently, the USPS EEO Skills class is an eight (8) hour long class conducted via Zoom.

Please note, the USPS cannot reimburse offerors for any expenses associated with applying for and attending the EEO Mediator Skills class, including, but not limited to fingerprints, drug tests, etc., even if an offeror does not complete the class successfully and thereby becomes ineligible for performing USPS Mediations.

The Supplier will be compensated based upon the stated pricing structure developed by EEO Office, therefore the Supplier will not be submitting Price Proposals.

E. Security Clearance

Offeror must be a U.S. citizen or have permanent resident alien status and successfully complete a background check and drug screening and must be able to obtain a security clearance.

PROVISION 4-3: REPRESENTATIONS AND CERTIFICATIONS (FEBRUARY 2025)

a. Type of Business Organization. The offeror, by checking the applicable blocks, represents that it:

(1) Operates as:

☐ a corporation incorporated under the laws of the state of _____; or country of _____ if incorporated in a country other than the United States of America.

- ☐ an individual;
- ☐ a partnership;
- ☐ a joint venture;
- ☐ a limited liability company;
- ☐ a nonprofit organization; or
- ☐ an educational institution; and

(2) Is (check all that apply)

- ☐ a small business concern;
- ☐ a minority business (indicate minority below):
 - ☐ Black American
 - ☐ Hispanic American
 - ☐ Native American
 - ☐ Asian American:
- ☐ a woman-owned business; or
- ☐ none of the above entities.

(a) A small business concern for the purposes of Postal Service purchasing means a business, including an affiliate, that is independently owned and operated, is not dominant in producing or performing the supplies or services being purchased, and has no more than 500 employees, unless a different size standard has been established by the Small Business Administration (see 13 CFR 121, particularly for different size standards for airline, railroad, and construction companies). For subcontracts of \$50,000 or less, a subcontractor having no more than 500 employees qualifies as a small business without regard to other factors.

(b) Minority Business. A minority business is a concern that is at least 51 percent owned by, and whose management and daily business operations are controlled by, one or more members of a socially and economically disadvantaged minority group, namely U.S. citizens who are Black Americans, Hispanic Americans, Native Americans, or Asian Americans. (Native Americans are American Indians, Eskimos, Aleuts, and Native Hawaiians. Asian Americans are U.S. citizens whose origins are Japanese, Chinese, Filipino, Vietnamese, Korean, Samoan, Laotian, Kampuchean (Cambodian), Taiwanese, in the U.S. Trust Territories of the Pacific Islands or in the Indian subcontinent.)

(c) Woman-owned Business. A woman-owned business is a concern at least 51 percent of which is owned by a woman (or women) who is a U.S. citizen, controls the firm by exercising the power to make policy decisions, and operates the business by being actively involved in day-to-day management.

(d) Educational or Other Nonprofit Organization. Any corporation, foundation, trust, or other institution operated for scientific or educational purposes, not organized for profit, no part of the net earnings of which inures to the profits of any private shareholder or individual.

3. Is (check all that apply)

☐ a Postal Service employee or a business organization substantially owned or controlled by such an individual

☐ a spouse of a Postal Service employee or a business organization substantially owned or controlled by such an individual

☐ another family member of a Postal Service employee or a business organization substantially owned or controlled by such an individual

☐ an individual residing in the same household as a Postal Service employee or a business organization substantially owned or controlled by such an individual.

(Note: Offers from any of the sources listed in subparagraph a.3, may not be considered for an award pending review and recommendation by the Postal Service Ethics Office.)

b. Parent Company and Taxpayer Identification Number

(1) A parent company is one that owns or controls the basic business policies of an offeror. To own means to own more than 50 percent of the voting rights in the offeror. To control means to be able to formulate, determine, or veto basic business policy decisions of the offeror. A parent company need not own the offeror to control it; it may exercise control through the use of dominant minority voting rights, proxy voting, contractual arrangements, or otherwise.

(2) Enter the offeror's U.S. Taxpayer Identification Number (TIN) in the space provided. The TIN is the offeror's Social Security number or other Employee Identification Number (EIN) used on the offeror's Quarterly Federal Tax Return, U.S. Treasury Form 941, or as required by Internal Revenue Service (IRS) regulations. Offeror's TIN: _____

(3) IRS Form W-9, Request for Taxpayer Identification Number and Certification. You must complete a copy of IRS Form W-9 and attach it to this certification.

(4) Check this block if the offeror is owned or controlled by a parent company: ☐

(5) If the block above is checked, provide the following information about the parent company:

Parent Company's Name: _____

Parent Company's Main Office: _____

Address: _____

No. and Street: _____

City: _____ State: _____ ZIP Code: _____

Parent Company's TIN: _____

(6) If the offeror is a member of an affiliated group that files its federal income tax return on a consolidated basis (whether or not the offeror is owned or controlled by a parent company, as provided above) provide the name and TIN of the common parent of the affiliated group:

Name of Common Parent: _____

Common Parent's TIN: _____

c. Certificate of Independent Price Determination

(1) By submitting this proposal, the offeror certifies, and in the case of a joint proposal each party to it certifies as to its own organization, that in connection with this solicitation:

(a) The prices proposed have been arrived at independently, without consultation, communication, or agreement, for the purpose of restricting competition, as to any matter relating to the prices with any other offeror or with any competitor;

(b) Unless otherwise required by law, the prices proposed have not been and will not be knowingly disclosed by the offeror before award of a contract, directly or indirectly to any other offeror or to any competitor; and

(c) No attempt has been made or will be made by the offeror to induce any other person or firm to submit or not submit a proposal for the purpose of restricting competition.

(2) Each person signing this proposal certifies that:

(a) He or she is the person in the offeror's organization responsible for the decision as to the prices being offered herein and that he or she has not participated, and will not participate, in any action contrary to paragraph a above; or

(b) He or she is not the person in the offeror's organization responsible for the decision as to the prices being offered but that he or she has been authorized in writing to act as agent for the persons responsible in certifying that they have not participated, and will not participate, in any action contrary to paragraph a above, and as their agent does hereby so certify; and he or she has not participated, and will not participate, in any action contrary to paragraph a above.

(3) Modification or deletion of any provision in this certificate may result in the disregarding of the proposal as unacceptable. Any modification or deletion should be accompanied by a signed statement explaining the reasons and describing in detail any disclosure or communication.

d. Reserved

e. Certification Regarding Debarment, Proposed Debarment, and Other Matters

(This certification must be completed with respect to any offer with a value of \$100,000 or more.)

(1) The offeror certifies, to the best of its knowledge and belief, that it or any of its principals:

(a) Are ☐ are not ☐ , presently debarred or proposed for debarment, or declared ineligible for the award of contracts by any Federal, state, or local agency;

(b) Have ☐ have not ☐ , within the 3-year period preceding this offer, been convicted of or had a civil judgment rendered against them for commission of fraud or a criminal offense in connection with obtaining, attempting to obtain, or performing a public (Federal, state, or local) contract or subcontract; violation of Federal or state antitrust statutes relating to the submission of offers; or commission of embezzlement, theft, forgery, bribery, falsification or destruction of records, making false statements, tax evasion, or receiving stolen property; and

(c) Are ☐ are not ☐ presently indicted for, or otherwise criminally or civilly charged by a governmental entity with, commission of any of the offenses enumerated in subparagraph (b) above.

(2) The offeror has ☐ has not ☐ , within a 3-year period preceding this offer, had one or more contracts terminated for default by any Federal, state, or local agency.

(3) "Principals," for the purposes of this certification, means officers, directors, owners, partners, and other persons having primary management or supervisory responsibilities within a business entity (e.g., general manager, plant manager, head of a subsidiary, division, or business segment, and

similar positions).

(4) The offeror must provide immediate written notice to the contracting officer if, at any time prior to contract award, the offeror learns that its certification was erroneous when submitted or has become erroneous by reason of changed circumstances.

(5) A certification that any of the items in e.1 and e.2 of this provision exists will not necessarily result in withholding of an award under this solicitation. However, the certification will be considered as part of the evaluation of the offeror's capability (see Section 2-26.4.2, Supplier Capability, in the Postal Service's Supplying Principles and Practices). The offeror's failure to furnish a certification or provide additional information requested by the contracting officer will affect the capability evaluation.

(6) Nothing contained in the foregoing may be construed to require establishment of a system of records in order to render, in good faith, the certification required by e.1 and e.2 of this provision. The knowledge and information of an offeror is not required to exceed that which is normally possessed by a prudent person in the ordinary course of business dealings.

(7) This certification concerns a matter within the jurisdiction of an agency of the United States and the making of a false, fictitious, or fraudulent certification may render the maker subject to prosecution under Section 1001, Title 18 U.S.C.

(8) The certification in e.1 and e.2 of this provision is a material representation of fact upon which reliance was placed when making the award. If it is later determined that the offeror knowingly rendered an erroneous certification, in addition to other remedies available to the Postal Service, the contracting officer may terminate the contract resulting from this solicitation for default.

f. Reserved.

3 - PART 3 - CONTRACT CLAUSES

CLAUSES INCORPORATED BY REFERENCE

The above clauses are incorporated by reference as if set forth in full text. The text of these clauses may be accessed electronically at this address: <http://about.usps.com/manuals/spp/spp.pdf> or, upon request, will be provided by the contracting officer.

CLAUSES BY FULL TEXT

CLAUSE B-3 CONTRACT TYPE (MARCH 2006)

This is an Ordering Agreement. An Ordering Agreement is not itself a contract. Rather, a contract will be established when an order is issued under the Ordering Agreement. There is no obligation by the Postal Service to place future orders with the Supplier under this Ordering Agreement.

CLAUSE B-9 CLAIMS AND DISPUTES (AUGUST 2023)

a. This contract is subject to the Contract Disputes Act of 1978 (41 U.S.C. 7101-7109) ("the Act" or "CDA").

b. Except as provided in the Act, all disputes arising under or relating to this contract must be resolved under this clause.

c. "Claim," as used in this clause, means a written demand or written assertion by one of the contracting parties seeking, as a matter of right, the payment of money in a sum certain, the adjustment or interpretation of contract terms, or other relief arising under or relating to this

contract. However, a written demand or written assertion by the supplier seeking the payment of money exceeding \$100,000 is not a claim under the Act until certified as required by subparagraph c(2) below. A voucher, invoice, or other routine request for payment that is not in dispute when submitted is not a claim under the Act. The submission may be converted to a claim under the Act by complying with the submission and certification requirements of this clause, if it is disputed either as to liability or amount is not acted upon in a reasonable time.

(1) A claim by the supplier must be made in writing and submitted to the contracting officer for a written decision. A claim by the Postal Service against the supplier is subject to a written decision by the contracting officer.

(2) For supplier claims exceeding \$100,000, the supplier must submit with the claim the following certification:

"I certify that the claim is made in good faith, that the supporting data are accurate and complete to the best of my knowledge and belief, that the amount requested accurately reflects the contract adjustment for which the supplier believes the Postal Service is liable, and that I am duly authorized to certify the claim on behalf of the supplier."

(3) The certification may be executed by any person duly authorized to bind the supplier with respect to the claim.

d. For supplier claims of \$100,000 or less, the contracting officer must, if requested in writing by the supplier, render a decision within 60 days of the request. For supplier-certified claims over

\$100,000, the contracting officer must, within 60 days, decide the claim or notify the supplier of the date by which the decision will be made.

e. The contracting officer's decision is final unless the supplier appeals or files a suit as provided in the Act.

f. When a CDA claim is submitted by or against a supplier, the parties by mutual consent may agree to use an alternative dispute resolution (ADR) process to assist in resolving the claim. A certification as described in c(2) of this clause must be provided for any claim, regardless of dollar amount, before ADR is used.

g. The Postal Service will pay interest in the amount found due and unpaid from:

(1) The date the contracting officer receives the claim (properly certified, if required); or

(2) For supplier-certified claims over \$100,000, the contracting officer must, within 60 days, decide the claim or notify the supplier of the date by which the decision will be made.

(3) The date payment otherwise would be due, if that date is later, until the date of payment.

h. Simple interest on claims will be paid at a rate determined in accordance with Clause B-22, Interest.

i. The supplier must proceed diligently with performance of this contract, pending final resolution of any request for relief, claim, appeal, or action arising under the contract, and comply with any decision of the contracting officer.

CLAUSE B-26: PROTECTION OF POSTAL SERVICE BUILDINGS, EQUIPMENT, AND VEGETATION (MARCH 2026)

The supplier must use reasonable care to avoid damaging buildings, equipment, and vegetation (such as trees, shrubs, and grass) on the Postal Service installation. If the supplier fails to do so

and damages any buildings, equipment, or vegetation, the supplier must replace or repair the damage at no expense to the Postal Service, as directed by the contracting officer. If the supplier fails or refuses to make repair or replacement, the supplier will be liable for the cost of repair or replacement, which may be deducted from the contract price.

CLAUSE B-39 INDEMNIFICATION (MARCH 2006)

The supplier must save harmless and indemnify the Postal Service and its officers, agents, representatives, and employees from all claims, losses, damage, actions, causes of action, expenses, and/or liability resulting from, brought for, or on account of any personal injury or property damage received or sustained by any person, persons or property growing out of, occurring, or attributable to any work performed under or related to this contract, resulting in whole or in part from negligent acts or omissions of the supplier, any subcontractor, or any employee, agent, or representative of the supplier or any subcontractor.

CLAUSE 1-1 PRIVACY PROTECTION (OCTOBER 2014)

In addition to other provisions of this contract, the supplier agrees to the following:

- a. *Privacy Act* — If the supplier operates a system of records on behalf of the Postal Service, the Privacy Act (5 U.S.C. 522a), the Postal Service regulations at 39 CFR Parts 266–267, and Handbook AS-353, *Guide to Privacy, the Freedom of Information Act*, and Records Management and Appendix, apply to those records. The supplier is considered to operate a system of records if it maintains records (including collecting, using, revising, deleting, or disseminating records) from which information is retrieved by the name of an individual or by some number, symbol, or other identifier assigned to the individual. The supplier must comply with the Act and the Postal Service regulations and Handbook AS-353 in designing, developing, managing, and operating the system of records, including ensuring that records are current and accurate for their intended use, and incorporating adequate safeguards to prevent misuse or improper disclosure of personal information. Violations of the Act may subject the violator to criminal penalties.
- b. Information Pertaining to Individuals (“Personal Information”) — If the supplier has access to Postal Service information pertaining to individuals (e.g. customer or employee information), including address information, whether collected online or offline by the Postal Service or by a supplier acting on its behalf, the supplier must comply with the following:
 1. *General* — With regard to the Postal Service customer information to which it has access pursuant to this contract, the supplier has that access as an agent of the Postal Service and must adhere to its official Privacy Policy at <http://usps.com/privacypolicy>.
 2. *Use, Ownership, and Nondisclosure* — The supplier may use Postal Service Personal Information solely for the purposes of this contract, and may not collect or use such information for non-Postal Service marketing, promotion, or any other purpose without the prior written approval of the contracting officer. The supplier may not maintain, access, or store (including archival back-ups) any Personal Information data outside the United States. The supplier must restrict access to such information to those employees who need the information to perform work under this contract, and must ensure that each such employee (including subcontractors’ employees) sign a nondisclosure agreement, in a form suitable to the contracting officer, prior to being granted access to the information. The Postal Service retains sole ownership and rights to its Personal Information. Unless the contract states otherwise, upon completion of the contract the supplier must turn over all Postal Service Personal Information and any copies of the information, in any form the Personal Information or copies may exist, in its possession to the Postal Service. In addition, the supplier must certify that no Postal Service Personal Information and, if applicable, copies, have been retained unless otherwise authorized in writing by the contracting officer. If so required elsewhere in this contract, the information or copies must be destroyed by the supplier and the supplier must certify to the contracting officer that such destruction has taken place.

3. *Security Plan* — When applicable, and unless waived in writing by the contracting officer, the supplier must work with the Postal Service to develop and implement a security plan that addresses the protection of Personal Information. The plan will be incorporated into the contract and followed by the supplier, and must, at a minimum, address notification to the Postal Service of any security breach. If the contract does not include a security plan at the time of contract award, it must be added within 60 days after contract award.
4. *Breach Notification* — If there is any actual or suspected breach of any nature in the security of Postal Service data, including Personal Information, the supplier must notify the contracting officer and the Postal Service's Chief Privacy Officer as soon as practicable but no later than 24 hours following the detection of a suspected or confirmed breach. The supplier will be required to follow Postal Service policies regarding breach notification to customers and/or employees.
5. *Legal Demands for Information* — If a legal demand is made for Postal Service Personal Information (such as by subpoena), the supplier must immediately notify the contracting officer and follow the applicable requirements in 39 CFR, sections 265.11 and 265.12. After notification, the Postal Service will determine whether and to what extent to comply with the legal demand. Should the Postal Service agree to or unsuccessfully resist a legal demand, the supplier may, with the written permission of the contracting officer, release the information specifically demanded.
- c. *Online Assistance* — If the supplier assists in the design, development, or operation of a Postal Service customer Web site, or if it designs or places an ad banner, button, or link on a Postal Service Web site or any Web site on the Postal Service's behalf, the supplier must comply with the limitations set forth in the Official Postal Service Privacy Policy (see b.1, above). Exceptions to these limitations require the prior written approval of the contracting officer and the Postal Service's Chief Privacy Officer.
- d. *Marketing E-Mail* — If the supplier assists the Postal Service in conducting a marketing e-mail campaign, the supplier does so as an agent of the Postal Service and must adhere to the Postal Service policies set out in Postal Service Management Instruction AS-350-2004-4, *Marketing E-mail*. Suppliers wishing to conduct marketing email campaigns to postal employees must first obtain the prior written approval of the contracting officer.
- e. *Audits* — The Postal Service may audit the supplier's compliance with the requirements of this clause, including through the use of online compliance software.
- f. *Indemnification* — The supplier will indemnify the Postal Service against all liability (including costs and fees) for damages arising out of violations of this clause.

Flow-down — The supplier will flow this clause down to any and all subcontractors

CLAUSE 1-7 ORGANIZATIONAL CONFLICTS OF INTEREST (MARCH 2006)

- a. *Warranty Against Existing Conflicts of Interest*. The supplier warrants and represents that, to the best of its knowledge and belief, it does not presently have organizational conflicts of interest that would diminish its capacity to provide impartial, technically sound, objective research assistance or advice, or would result in a biased work product, or might result in an unfair competitive advantage, except for advantages flowing from the normal benefits of performing this agreement.
- b. *Restrictions on Contracting*. The supplier agrees that during the term of this agreement, any extensions thereto, and for a period of 2 years thereafter, neither the supplier nor its affiliates will perform any of the following:
 - (1) Compete for any Postal Service contract for production of any product for which the supplier prepared any work statement or specifications or conducted any studies or performed any task under this agreement.

(2) Contract (as the provider of a component or the provider of research or consulting services) with any offeror competing for any Postal Service contract for production of any product for which the supplier prepared any work statements or specifications or conducted any studies or performed any task under this agreement.

(3) Contract (as the provider of a component or the provider of research or consulting services) with the offeror which wins award of a Postal Service contract for production of any product for which the supplier prepared any work statement or specifications or conducted any studies or performed any task under this agreement.

c. Possible Future Conflicts of Interest. The supplier agrees that, if after award of this agreement, it discovers any organizational conflict of interest that would diminish its capacity to provide impartial, technically sound, objective research assistance or advice, or would result in a biased work product, or might result in an unfair competitive advantage, except advantages flowing from the normal benefits of performing this agreement, the supplier will make an immediate and full disclosure in writing to the contracting officer, including a description of the action the supplier has taken or proposes to take to avoid, eliminate, or neutralize this conflict of interest.

d. Nondisclosure of Confidential Material

(1) The supplier recognizes that, in performing this agreement, it may receive confidential information. To the extent that and for as long as the information is confidential, the supplier agrees to take the steps necessary to prevent its disclosure to any third party without the prior written consent of the contracting officer.

(2) The supplier agrees to indoctrinate its personnel who will have access to confidential information as to the confidential nature of the information, and the relationship under which the supplier has possession of this information.

(3) The supplier agrees to limit access to the confidential information obtained, generated, or derived, and to limit participation in the performance of orders under this agreement to those employees whose services are necessary for performing them.

e. Postal Service Remedy. If the supplier breaches or violates any of the warranties, covenants, restrictions, disclosures or nondisclosures set forth under this clause, the Postal Service may terminate this agreement, in addition to any other remedy it may have for damages or injunctive relief.

CLAUSE 1-11 PROHIBITION AGAINST CONTRACTING WITH FORMER OFFICERS OR PCES EXECUTIVES (MARCH 2006)

During the performance of this contract, former Postal officers or Postal Career Executive Service (PCES) executives are prohibited from employment by the contractor as key personnel, experts or consultants, if such individuals, within 1 year after their retirement from the Postal Service, would be performing substantially the same duties as they performed during their career with the Postal Service.

CLAUSE 1-12 USE OF FORMER POSTAL SERVICE EMPLOYEES (MARCH 2006)

During the term of this contract, the supplier must identify any former Postal Service employees it proposes to be engaged, directly or indirectly, in contract performance. Such individuals may not commence performance without the contracting officer's prior approval. If the contracting officer does not provide such approval, the supplier must replace the proposed individual former employee with another individual equally qualified to provide the services called for in the contract.

CLAUSE 2-19: OPTION TO EXTEND (SHORT TERM) (OCTOBER 2019)

The Postal Service may require the supplier to extend and continue in performance at the same delivery/performance rate and at the unit prices specified in the schedule. The contracting officer may exercise this option by giving the supplier advance written notice of the requirement to continue performance at least 30 days prior to the expiration of the contract term. This option may be exercised more than once, but the duration of each extension shall not exceed 90 days and the sum of all extensions made pursuant to this clause shall not in the aggregate exceed 6 months.

CLAUSE 2-20: OPTION PERIOD (SEPTEMBER 2021)

The Postal Service may extend the term of this contract within the limits and at the prices stated in the schedule. The contracting officer may exercise this option at any time within the contract term by giving the supplier at least 60 days (unless a different number of days is specified within the schedule) written notice prior to the expiration of the contract term. If the Postal Service exercises this option, the extended contract includes this option clause as applicable to any remaining option periods stated in the schedule. The total duration of this contract, including exercised option period extensions, may not exceed the time limit set forth in the schedule.

CLAUSE 2-39 ORDERING (FEBRUARY 2018)

- a. Goods or services to be furnished under this contract will be ordered by authorized Postal Service credit card, issuance of delivery or task orders by contracting officers or other designated ordering officials, or alternative methods as described in the contract, during the period and by the activities specified in the schedule.
- b. Orders may be issued in writing, by written telecommunication, electronic data interchange (EDI), via catalog, other methods as defined in the contract, or orally. Oral orders, other than authorized Postal Service credit card orders, must be confirmed in writing. Orders sent by mail are considered issued when placed in the mail.
- c. The supplier must report to the contracting officer in the format and intervals specified in the schedule all orders charged to an authorized Postal Service credit card.
- d. All orders are subject to the terms and conditions of this contract. If there is any conflict between an order and this contract, the contract is controlling.
- e. Where the Postal Service has made more than one award for goods or services, the Postal Service reserves the right to further compete orders for the goods and services required under this contract. The decision to further compete orders and whether orders will be competed among all or a selected group of suppliers holding contracts for the same or similar goods or services is at the Postal Service's discretion.

CLAUSE 4-1 GENERAL TERMS AND CONDITIONS (APRIL 2025)

a. Inspection and Acceptance - The supplier will only tender for acceptance those goods or services that conform to the requirements of this contract. The Postal Service reserves the right to inspect or test goods or services that have been tendered for acceptance. The Postal Service may require repair or replacement of nonconforming goods or re-performance of nonconforming services at no increase in contract price. If repair, replacement or reperformance will not correct the defects or it is not possible, the Postal Service may seek an equitable price reduction or adequate consideration for acceptance of nonconforming goods or services. The Postal Service must exercise its post acceptance rights:

(1) Within a reasonable period of time after the defect was discovered or should have been discovered, and

(2) Before any substantial change occurs in the condition of the items, unless the change is due to the

defect in the item.

b. Assignment - If this contract provides for payments aggregating \$10,000 or more, claims for monies due or to become due from the Postal Service under it may be assigned to a bank, trust company, or other financing institution, including any federal lending agency, and may thereafter be further assigned and reassigned to any such institution. Any assignment or reassignment must cover all amounts payable and must not be made to more than one party, except that assignment or reassignment may be made to one party as agent or trustee for two or more parties participating in financing this contract. No assignment or reassignment will be recognized as valid and binding upon the Postal Service unless a written notice of the assignment or reassignment, together with a true copy of the instrument of assignment, is filed with:

(1) The contracting officer;

(2) The surety or sureties upon any bond; and

(3) The office, if any, designated to make payment, and the contracting officer has acknowledged the assignment in writing.

Assignment of this contract or any interest in this contract other than in accordance with the provisions of this clause will be grounds for termination of the contract for default at the option of the Postal Service.

c. Changes:

(1) The contracting officer may, in writing, without notice to any sureties, order changes within the general scope of this contract in the following:

(a) Drawings, designs, or specifications when goods to be furnished are to be specially manufactured for the Postal Service in accordance with them;

(b) Statement of Work, Statement of Objectives or description of services;

(c) Method of shipment or packing;

(d) Places of delivery of goods or performance of services;

(e) Delivery or performance schedule;

(f) Postal Service furnished property or facilities.

(2) Any other written or oral order (including direction, instruction, interpretation, or determination) from the contracting officer that causes a change will be treated as a change order under this paragraph, provided that the supplier gives the contracting officer written notice stating:

(a) The date, circumstances, and source of the order, and

(b) That the supplier regards the order as a change order.

(3) If any such change is determined to increase or decrease the cost of performance or affect the delivery schedule, the contract will be modified to affect an equitable adjustment.

(4) The supplier's request for equitable adjustment must be asserted within 30 days of receiving a written change order.

(5) Failure to agree to any adjustment is a dispute under Clause B-9: Claims and Disputes, which is

incorporated into this contract by reference (see paragraph s.). Nothing in that clause excuses the supplier from proceeding with the contract as changed.

d. Time is of the Essence - Unless otherwise agreed, the dates of delivery and performance as stated in the schedule are material terms of this contract. The supplier's unexcused delay in delivery and performance will be grounds for termination for default.

e. Reserved.

f. Reserved.

g. Invoices:

(1) The supplier's proper invoice(s) must be submitted before payment can be made. The supplier agrees that submission of an invoice to the Postal Service for payment is a certification that:

(a) Any services being billed for have been performed in accordance with the contract requirements; and

(b) Any goods for which the Postal Service is being billed have been shipped or delivered in accordance with the instructions issued by the contracting officer and that the goods are in the quantity and of the quality designated in the contract.

(2) To ensure prompt payment, an original invoice (or electronic invoice, if authorized) must be submitted to the address designated in the contract to receive invoices for each destination and shipment. An invoice must contain:

(a) The supplier's name, remit to address (including ZIP+4), email address, and phone number;

(b) Unique invoice number and invoice date;

(c) The contract number;

(d) Any applicable task or delivery order number;

(e) A description of the goods or services and the dates shipped, delivered or performed;

(f) The point of shipment or delivery;

(g) Quantity, unit of measure, unit price(s) and extension(s) of the items shipped or delivered;

(h) Shipping and payment terms, including GBL number if applicable; and

(i) Any additional information required by the contract.

(3) The supplier agrees that, by submitting a final invoice and receiving payment therefore, all the Postal Service payment obligations under the contract have been satisfied.

h. Patent Indemnity - The supplier will indemnify the Postal Service and its officers, employees and agents against liability, including costs for actual or alleged direct or contributory infringement of, or inducement to infringe, any United States or foreign patent, trademark, or copyright, or for any actual or alleged misappropriation or misuse of any trade secret or confidential information, arising out of the performance of this contract, provided the supplier is reasonably notified of such claims and proceedings.

i. Payment:

(1) Payment will be made for items accepted by the Postal Service that have been delivered to the

delivery destinations set forth in this contract. The Postal Service will make payment in accordance with the Prompt Payment Act (31 U.S.C. 3903) and 5 CFR 1315. Payments under this contract may be made by the Postal Service either by electronic funds transfer (EFT), the Postal Service's preferred method of payment, check, or government credit card at the option of the Postal Service. When the EFT payment method is selected, the Postal Service will provide the supplier with Form 3881-X, Supplier and Payee Electronic Funds Transfer (EFT) Enrollment Form, at contract award. The supplier must complete the form and submit it to the designated Postal Accounting Service Center to ensure the proper routing of payments.

(2) Discount. In conjunction with any discount offered for early payment, time will be computed from the date of the invoice. For purposes of computing the discount earned, payment will be considered to have been made on the date which appears on the payment check or the date on which an electronic funds transfer was made.

(3) Overpayments. If the supplier becomes aware of a duplicate contract financing or invoice payment or that the Postal Service has otherwise overpaid on a contract financing or invoice payment, the supplier shall-

(a) Remit the overpayment to the payment office cited in the contract along with a description of the overpayment including the-

(i) Circumstances of the overpayment (e.g., duplicate payment, erroneous payment, liquidation errors, date(s) of overpayment);

(ii) Affected contract number and delivery order number, if applicable;

(iii) Affected line item, if applicable; and

(iv) Supplier point of contact.

(b) Provide a copy of the remittance and supporting documentation to the contracting officer.

(4) Interest.

(a) All amounts that become payable by the supplier to the Postal Service under this contract shall bear simple interest from the date due until paid unless paid within 30 days of becoming due. The interest rate shall be the interest rate established by the Secretary of the Treasury as provided in 41 U.S.C. § 7109, which is applicable to the period in which the amount becomes due, as provided below, and then at the rate applicable for each six-month period as fixed by the Secretary until the amount is paid.

(b) The Postal Service may issue a demand for payment to the supplier upon finding a debt is due under the contract.

(c) Amounts shall be due at the earliest of the following dates:

(i) The date fixed under this contract.

(ii) The date of the first written demand for payment, including any demand for payment resulting from a default termination.

(d) The interest charge shall be computed for the actual number of calendar days involved beginning on the due date and ending on-

(i) The date on which the designated office receives payment from the supplier;

(ii) The date of issuance of a Postal Service check to the supplier from which an amount otherwise

payable has been withheld as a credit against the contract debt; or

(iii) The date on which an amount withheld and applied to the contract debt would otherwise have become payable to the supplier.

j. Risk of Loss - Unless the contract specifically provides otherwise, risk of loss or damage to the goods provided under this contract will remain with the supplier until, and will pass to the Postal Service upon:

(1) Delivery of the goods to a carrier, if transportation is f.o.b. origin, or;

(2) Delivery of the goods to the Postal Service at the destination specified in the contract, if transportation is f.o.b. destination.

k. Taxes - The contract price includes all applicable federal, state, and local taxes and duties.

l. Termination for the Postal Service's Convenience - The Postal Service reserves the right to terminate this contract, or any part hereof, for its sole convenience. In the event of such termination, the supplier must immediately stop all work and must immediately cause any and all of its suppliers and subcontractors to cease work. Subject to the terms of this contract, the supplier will be paid a percentage of the contract price, reflecting the percentage of the work performed prior to the notice of termination, plus reasonable charges the supplier can demonstrate to the satisfaction of the Postal Service using its standard record keeping system, to have resulted from the termination. The supplier will not be paid for any work performed or costs incurred which reasonably could have been avoided. The supplier must submit to the contracting officer a termination settlement proposal within 180 days after the effective date of termination, unless the parties mutually agree to a different time limit. If the supplier fails to submit a termination settlement proposal within the time allowed, the contracting officer may determine, based on the information available, the amount, if any, due to the supplier by reason of the termination and pay that amount. If the supplier's proposal exceeds \$100,000 the contracting officer may request that it be certified. If the supplier and the contracting officer fail to agree on the whole amount to be paid because of the termination of work, the Postal Service will pay the supplier the amounts determined by the contracting officer. The supplier will have the right to submit a claim under Clause B-9 from any determination made by the contracting officer as to the termination settlement amount due. Should the supplier fail to submit the termination settlement proposal within 180 days, the supplier will be deemed to have waived its right to submit a claim for termination costs.

m. Termination for Default - The Postal Service may terminate this contract, or any part hereof, for default (including in the term "default" any refusal or failure to prosecute the work diligently enough to ensure its completion within the time specified or any extension) by the supplier, or if the supplier fails to comply with any terms and conditions, or if the supplier fails to provide the Postal Service, upon request, with adequate assurances of future performance. In the event of termination for default, the Postal Service will not be liable to the supplier for any amount for goods or services not accepted, and the supplier will be liable to the Postal Service for any and all rights and remedies provided by law. The debarment, suspension, or ineligibility of the supplier, its partners, officers, or principal owners under the Postal Service's procedures (see 39 CFR Part 601) may constitute an act of default under this contract, and such act will not be subject to notice and cure pursuant to any termination of default provision of this contract (if any). If it is determined that the Postal Service improperly terminated this contract for default, such termination will be deemed a termination under paragraph l.

n. Title - Unless specified elsewhere in this contract, title to items furnished under this contract will pass to the Postal Service upon acceptance, regardless of when or where the Postal Service takes physical possession.

o. Warranty - The supplier warrants and implies that the goods delivered under this contract are merchantable and fit for the use for the particular purpose described in this contract.

p. Reserved.

q. Other Compliance Requirements - The supplier will comply with all Federal, State, and local laws, executive orders, rules and regulations applicable to its performance under this contract. If there are any changes to a federal, state or local law, statute or regulation, executive order or other rule applicable to contract performance during the term of this contract that result in additional contract costs, these costs will be borne by the supplier.

r. Order of Precedence - Any inconsistencies in this solicitation or contract will be resolved by giving precedence in the following order:

- (1) The Schedule of Goods/Services section of PS Form 8203;
- (2) The Statement of Work (SOW) or Statement of Objectives (SOO) (if there are both, the SOO takes precedence over the SOW) and any accompanying Postal Service appendices, attachments, or addenda, to the SOW or SOO;
- (3) The Postal Service provisions and clauses in the Terms and Conditions;
- (4) Other Postal Service-provided attachments to this solicitation or contract;
- (5) Supplier-provided attachments to this contract, such as computer software license agreements, end user licensing agreements, or technical proposals; and
- (6) The remainder of PS Form 8203.

s. Incorporation by Reference - Wherever in this solicitation or contract a standard provision or clause is incorporated by reference, the incorporated term is identified by its title, the provision or clause number assigned to it in the Postal Service Supplying Practices and its date. The text of incorporated terms may be found at <http://about.usps.com/manuals/spp/spp.pdf>. The following clauses are incorporated in this contract by reference:

- (1) Clause B-1: Definitions.
- (2) Clause B-9: Claims and Disputes.
- (3) Clause B-15: Notice of Delay.
- (4) Clause B-16: Suspensions and Delays.
- (5) Clause B-19: Excusable Delays.
- (6) Clause B-30: Permits and Responsibilities.
- (7) Clause 8-13: Intellectual Property Rights.

t. Shipping - The supplier must deliver goods that meet the prescribed physical limitations of the current Mailing Standards of the United States Postal Service, Domestic Mail Manual (DMM®) either by its own personnel/equipment or by use of the United States Postal Service, unless the contracting officer grants a waiver of this requirement. The supplier is responsible for ensuring that the packing and packaging are sufficient to protect the goods and ensure usability upon receipt.

u. Unauthorized Obligations

(1) The Postal Service does not agree to any term in a Master Service Agreement (MSA), End User License Agreement (EULA), Terms of Service (TOS), Terms and Conditions (Ts & Cs), or similar instrument or agreement provided by the supplier or its subcontractor that

(a) Conflicts with, or otherwise modifies, the terms of this clause in paragraphs b. Assignment, c.

Changes, h. Patent Indemnity, k. Taxes, l. Termination for Convenience, m. Termination for Default, or r. Order of Precedence;

(b) Requires the Postal Service to indemnify the supplier, or any other person or entity, for damages, costs, fees, or any other loss or liability, or includes any other unauthorized obligations that are against Postal Service policy, except as expressly authorized by statute and applicable regulations and policies;

(c) Conflicts with, or otherwise modifies, the contract's period of performance as provided for in the PS Form 8203, including the base period and any option period(s);

(d) Provides the supplier with the right to access any Postal Service property, premises, systems, or personnel for the purposes of auditing the Postal Service's performance of its obligations under this contract;

(e) Conflicts with the Postal Service's obligations under the Freedom of Information Act or other federal laws pertaining to the disclosure of information;

(f) Imposes any obligations on the Postal Service with respect to privacy or data protection other than those required by applicable United States federal law;

(g) Conflicts with the False Claims Act, or otherwise purports to limit the supplier's liability for fraud, intentional or knowing misconduct, or negligence;

(h) Conflicts with Clause B-9: Claims and Disputes, or other federal laws pertaining to dispute resolution;

(i) Requires mediation or arbitration, or mandates any choice of law, venue, or jurisdiction other than as required by the Contract Disputes Act and any other applicable federal law;

(j) Permits the supplier to be awarded attorney's fees, interest, or equitable relief other than as provided for by applicable federal law; or

(k) Purports to incorporate, or incorporate by reference, terms from another document or website, unless those terms are made an attachment to the contract.

(2) When this contract is subject to any MSA, EULA, TOS, Ts & Cs, or similar instrument or agreement provided by the supplier or its subcontractor that includes any term identified in paragraph u.(1), the following will govern:

(a) Any such term is unenforceable against the Postal Service.

(b) Any such term is deemed to be stricken from the MSA, EULA, TOS, Ts & Cs, or similar instrument or agreement.

(c) Neither the Postal Service nor any Postal Service authorized end user shall be deemed to have agreed to such term by virtue of it appearing in the MSA, EULA, TOS, Ts & Cs, or similar instrument or agreement. The Postal Service and any Postal Service end users are not bound by any such term, despite any MSA, EULA, TOS, Ts & Cs or similar instrument or agreement purporting to be binding through the completion of an "I agree" click box or other similar or comparable mechanism (e.g., "click-wrap" or "browse-wrap" agreements).

v. Use of Postal Service Data

(1) For any Postal Service data provided to the supplier under this contract, the supplier is hereby granted a revocable, non-exclusive, non-sublicensable license, for the term of this contract, to solely use such provided Postal Service data for the purpose of performing this contract. Otherwise, the supplier shall not use, distribute, reproduce, sell, rent, lease, create derivative works, or disclose any

Postal Service data provided to it under this contract without the advance written permission of the contracting officer.

(2) Notwithstanding the foregoing, the supplier shall not use, distribute, reproduce, sell, rent, lease, create derivative works, or disclose any Postal Service data given to it under the contract after the termination or expiration of this contract.

(3) Derivative works based on or derived from Postal Service data are considered Postal Service data and are owned by the Postal Service.

(4) Any Postal Service data provided to the supplier during performance under this contract must be returned to the contracting officer's representative (COR) no later than completion of the contract period of performance, or must be dispositioned at any time in accordance with written direction of the contracting officer.

(5) The supplier must include and flow this clause paragraph (4-1(v)) down to any subcontractor that will be provided Postal Service data under this contract.

CLAUSE 4-2 CONTRACT TERMS AND CONDITIONS REQUIRED TO IMPLEMENT POLICIES, STATUTES OR EXECUTIVE ORDERS (JUNE 2025)

a. Incorporation by Reference:

1. Wherever in this solicitation or contract a standard provision or clause is incorporated by reference, the incorporated term is identified by its title, the provision or clause number assigned to it in the Postal Service Supplying Practices. The text of incorporated terms may be found at <http://about.usps.com/manuals/spp/spp.pdf>. The following clauses are incorporated in this contract by reference:

a. Clause B-9: Claims and Disputes.

b. Clause B-25: Advertising of Contract Awards.

c. Clause 1-5: Gratuities or Gifts.

d. Clause 7-10: Sustainability

e. Clause 9-1: Convict Labor.

f. Clause 9-5: Contract Work Hours and Safety Standards

Act - Safety Standards.

2. If checked, the following additional clauses are also incorporated in this contract by reference:

(Contracting officer will check as appropriate.)

☒

Clause 1-1: Privacy Protection

☐

Clause 1-6: Contingent Fees

☐

Clause 1-9: Preference for Domestic Supplies

☐

Clause 1-10: Preference for Domestic Construction Materials

☐

Clause 9-2: Contract Work Hours and Safety Standards Act - Overtime Compensation

☐

Clause 9-3: Davis-Bacon Act

☐

Clause 9-6: Walsh-Healey Public Contracts Act

☐

Clause 9-10: Service Contract Act

☐

Clause 9-11: Service Contract Act - Short Form

☐

Clause 9-12: Fair Labor Standards Act and Service Contract Act - Price Adjustment

☐

Clause 9-13: Equal Opportunity for Workers with Disabilities

☐

Clause 9-14: Equal Opportunity for VEVRAA Protected Veterans

☐

Clause 9-16: Employer Reports on Employment of Protected Veterans

b. Examination of Records:

1. Records - "Records" includes books, documents, accounting procedures and practices, and other data, regardless of type and regardless of whether such items are in written form, in the form of computer data, or in any other form.

2. Examination of Costs - If this is a cost-type contract, the supplier must maintain, and the Postal Service will have the right to examine and audit all records and other evidence sufficient to reflect properly all costs claimed to have been incurred or anticipated to be incurred directly or indirectly in performance of this contract. This right of examination includes inspection at all reasonable times of the supplier's plants, or parts of them, engaged in the performance of this contract.

3. Cost or Pricing Data - If the supplier is required to submit cost or pricing data in connection with any pricing action relating to this contract, the Postal Service, in order to evaluate the accuracy, completeness, and currency of the cost or pricing data, will have the right to examine and audit all of the supplier's records, including computations and projections, related to:

- a. The proposal for the contract, subcontract, or modification;
- b. The discussions conducted on the proposal(s), including those related to negotiating;
- c. Pricing of the contract, subcontract, or modification; or
- d. Performance of the contract, subcontract or modification.

4. Reports - If the supplier is required to furnish cost, funding or performance reports, the contracting officer or any authorized representative of the Postal Service will have the right to examine and audit the supporting records and materials, for the purposes of evaluating:

a. The effectiveness of the supplier's policies and procedures to produce data compatible with the objectives of these reports; and

b. The data reported.

5. Availability - The supplier must maintain and make available at its office at all reasonable times the records, materials, and other evidence described in paragraphs b.(1)-(4) of this clause, for examination, audit, or reproduction, until 3 years after final payment under this contract or any longer period required by statute or other clauses in this contract. In addition:

a. If this contract is completely or partially terminated, the supplier must make available the records related to the work terminated until 3 years after any resulting final termination settlement; and

b. The supplier must make available records relating to appeals under Clause B-9: Claims and Disputes or to litigation or the settlement of claims arising under or related to this contract. Such records must be made available until such appeals, litigation or claims are finally resolved.

Note: (Note to contracting officers: Any contemplated changes to this paragraph b. may not be made before:

i. consulting with assigned counsel and the Office of the Inspector General, and

ii. a deviation has been reviewed and approved by a higher level than the contracting officer who holds deviation approval authority.

c. Payment Offsets. As required by 31 U.S.C. 3716, the Postal Service participates in the Treasury Offset Program of the Department of Treasury's Financial Management Service. Payments under this contract are subject to offset in whole or in part to for the supplier's delinquent tax and non-tax debts owed to the United States and the states and for delinquent child support payments. Suppliers with questions concerning a payment offset should contact the Treasury Offset Program call center at 1-800-304-3107.

CLAUSE 4-4 NONDISCLOSURE (PROFESSIONAL SERVICES) (MARCH 2006)

The supplier acknowledges that confidential information might be generated or made available during the course of performance of this agreement. In addition to the restrictions on disclosure established under the supplier's code of ethics, the supplier specifically agrees not to disclose any information received or generated under this contract, unless its release is approved in writing by the contracting officer. The supplier further agrees to assert any privilege allowed by law and to defend vigorously Postal Service rights to confidentiality.

CLAUSE 4-5 INSPECTION OF PROFESSIONAL SERVICES (MARCH 2006)

a. The contracting officer may, at any time or place, inspect the services performed and the products, including documents and reports. No matter what type of contract is employed, and in addition to any specific standards of quality set out in this agreement, the contracting officer may reject any services or products that do not meet the highest standards of professionalism. No payment will be due for any services or products rejected under this clause.

b. Acceptance of any product or service does not relieve the supplier of the duties imposed by supplier's code of professional ethics, and the supplier remains liable for the period allowed under federal law for claims by the United States, for any errors or omissions occurring during performance.

CLAUSE 4-7 RECORDS OWNERSHIP (MARCH 2006)

Notwithstanding any state law providing for retention of rights in the records, the supplier agrees that the Postal Service may, at its option, demand and take without additional compensation all records relating to the services provided under this agreement. The supplier must turn over all such records upon request but may retain copies of documents produced by the supplier.

CLAUSE 4-19 INFORMATION SECURITY REQUIREMENTS (APRIL 2023)

a. General - The Postal Service is committed to creating and maintaining an environment that protects Postal Service information and information resources from accidental or intentional unauthorized use, modification, disclosure, or destruction. As such, the supplier must develop, implement, and maintain effective information security controls that include administrative, technical, and physical safeguards as stated in Handbook AS-805-I, USPS Information Security Requirements for Suppliers.

These controls shall:

1. Ensure the security and confidentiality of Postal Service information and information systems,
2. Protect against threats to the security and integrity of Postal Service information and information systems, and
3. Protect against unauthorized access or unauthorized use of Postal Service information and information systems.

At least once per year, the supplier shall, audit and review its information security policies and procedures to ensure their continued effectiveness and determine whether adjustments are appropriate. Upon request, evidence of such audits and reviews shall be provided to the Postal Service.

Security Incident Notification. In the event of a cybersecurity incident on its network(s) or systems, the supplier must notify the Postal Service contracting officer and the Postal Service Corporate Information Security Office (866-877-7247) as soon as practicable but no later than:

- b. 24 hours following the detection of a security incident involving Postal Service information and/or information resources.
- c. 72 hours following the detection of a security incident not involving Postal Service information or information resources.

In the event of a security incident, the supplier agrees to take action promptly, at its own expense, to investigate the security incident, to identify and mitigate the effects of any such security incident, and to implement reasonable and appropriate measures in response to such security incident, including, but not limited to, immediate remedial action designed to prevent any future such occurrence. The Supplier will further provide the Postal Service with all available information, including details regarding the information and/or information systems affected, any indicators of compromise, and any actions taken.

* Subcontractors and Information Security - The supplier shall ensure that each of its subcontractors complies with the information security requirements of this clause. Further, the supplier must notify the contracting officer and CISO at CISO_TPCRM@usps.gov of its use of any subcontractor that will have access to any Postal Service information or information systems.

CLAUSE 6-1 CONTRACTING OFFICER'S REPRESENTATIVE (MARCH 2006)

The contracting officer will appoint a contracting officer's representative (COR), responsible for the day-to-day administration of the contract, who will serve as the Postal Service's point of contact with the supplier on all routine matters. A copy of the notice of appointment defining the COR's authority will be furnished to the supplier upon award of the contract.

CLAUSE 8-10 RIGHTS IN DATA - SPECIAL WORKS (MARCH 2006)

- a. Definition. Works means literary works, including technical reports, studies, and similar documents;

musical and dramatic works; and recorded information, regardless of the form or the medium on which it may be recorded. It does not include information incidental to contract administration, such as financial, administrative, cost or pricing, or management information.

b. Rights

(1) All works first produced in the performance of this contract are the sole property of the Postal Service. The supplier agrees not to assert or authorize others to assert any rights or establish any claim of copyright in these works.

(2) The supplier assigns all right, title, and interest to the Postal Service in all works first produced in performance of this contract that are not otherwise "works for hire" for the Postal Service under Section 201(b) of Title 17, United States Code. The supplier, unless directed otherwise by the contracting officer, must place on all such works delivered under this contract the following notice:

"Copyright (year of delivery) United States Postal Service"

(3) The supplier grants to the Postal Service a royalty-free, nonexclusive, irrevocable license throughout the world to publish, translate, deliver, perform, use, and dispose of in any manner any portion of a work that is not first produced in the performance of this contract but in which copyright is owned by the supplier and that is incorporated in the work finished under this contract, and to authorize others to do so for Postal Service purposes.

(4) Unless the contracting officer's written approval is obtained, the supplier may not include in any works prepared for or delivered to the Postal Service under this contract any works of authorship in which copyright is not owned by the supplier or the Postal Service without acquiring for the Postal Service any right necessary to perfect a license of the scope set forth in subparagraph b.3 above.

(5) Except as otherwise specifically provided for in this contract, the supplier may not use for purposes other than the performance of this contract, or release, reproduce, distribute, or publish, any work first produced in the performance of this contract, or authorize others to do so.

c. Indemnity. The supplier indemnifies the Postal Service (and its officers, agents, and employees acting for the Postal Service) against any liability, including costs and expenses, (1) for violation of proprietary rights, copyrights, or rights of privacy or publicity, arising out of the creation, delivery, or use of any works furnished under this contract, or (2) based upon any libelous or other unlawful matter contained in these works. These provision do not apply to material furnished by the Postal Service and incorporated in the works to which this clause applies.

CLAUSE 8-13: INTELLECTUAL PROPERTY RIGHTS (MARCH 2006)

All intellectual property rights evolving from studies, reports, or other data delivered under this contract are the sole property of the Postal Service. The supplier agrees to make, execute, and deliver to the Postal Service any papers or other instruments in such terms and contents as may be required for the filing of any required instrument necessary for preserving an intellectual property right and does hereby assign and transfer to the Postal Service the entire right, title, and interest in and to the intellectual property rights. Before final settlement of this contract, a final report must be submitted on Form 7398, Report of Inventions and Subcontracts, or other format acceptable to the contracting officer.